

THE BLACK PANTHER

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FRED HAMPTON MURDER CASE

F.B.I. ORDERED TO YIELD B.P.P. FILES

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FEB 17 1976

UNIV. OF VIRGINIA
CHARLOTTESVILLE, VA.

Subpoena Duces Tecum

Case No. 70 C 1384

United States District Court

Northern District of Illinois

THE PRESIDENT OF THE UNITED STATES OF AMERICA

To: RICHARD HEID, SAC
Federal Bureau of Investigation
219 South Dearborn Street
Chicago, Illinois

GREETING:

WE COMMAND YOU, that all business and excuses being laid aside, you and each of you attend before Honorable Judge Samuel Perry, one of the Judges of the United States District Court for said District, on the 21st day of January, A.D. 1976, at 10:00 o'clock in the morning in Room 2541 United States Court House in Chicago, in said District, to testify and give evidence in a certain cause now pending and undetermined in said Court, wherein Iboria Hampton, et al. is plaintiff and Edward V. Bonchian, et al., are

Defendant, on the part of said plaintiffs. And that you also diligently and carefully search for, examine, and inquire after and bring with you, and produce at the time and place aforesaid, a certain

SEE SCHEDULE HERETO ATTACHED AND MADE A PART HEREOF.

together with all copies, drafts, and vouchers relating to the said documents, and all other documents, letters, and paper writings whatsoever, that can or may afford any information or evidence in said cause. And this you shall do under the penalty of the law in that case made and provided.

To the Marshal of the Northern District of Illinois to execute and return in due form of law.

H. STUART CUNNINGHAM

(SEAL)

Clerk

Deputy Clerk

Dated: January 16, 1976



(Chicago, Ill.) - U.S. District Court Judge Joseph Sam Perry last week ordered the FBI to yield to lawyers for the plaintiffs in the \$47 million Fred Hampton murder case secret COINTELPRO documents on the Illinois State Chapter of the Black Panther Party and other FBI materials and files.

James Montgomery, a well-known Black attorney who recently joined the case on behalf of the plaintiffs, argued for nearly two and one-half hours, with "calm but intense brilliance" according to one courtroom report, against a defense motion to quash the subpoenaed documents, citing a number of legal precedents.

Montgomery's argument was basically that before Judge Perry could rule that the documents were not relevant as evidence, he had to hear arguments from both the defense and the plaintiffs. The plaintiffs therefore had a right to see the documents in order to argue.

Prior to ordering that the COINTELPRO (counterintelligence program) files be turned over, Perry stated that he would probably never agree to their being admitted into evidence, since this would "open Pandora's Box." He then issued a protective order prohibiting the lawyers from showing or discussing the documents with anyone but themselves.

Plaintiffs in the multimillion dollar damage case are the families of Fred Hampton and Mark Clark, two Illinois State Black Panther Party leaders killed during a December 4, 1969, shooting. CONTINUED ON PAGE 8

A subpoena (left) ordering the FBI to release COINTELPRO conspiracy documents related to the December, 1969, assassination of FRED HAMPTON was upheld in Chicago federal court last week. Inset on subpoena is the bullet ridden wall above the bed where Fred was shot as he slept.